

Munna Chauhan v. U.P. Power Corporation Limited and others

High Court of Judicature at Allahabad · Division Bench · 26 April 2023 · Writ - C No. 11398 of 2023 · **Disposed; fresh recovery order only under Supply Code after hearing.**

HEADNOTE

The Allahabad High Court disposed of a writ against a Section 3 demand notice and a consequential recovery of Rs.1,48,005 after the electricity department stated that the recovery had been withdrawn. The licensee may pass a fresh order only after an opportunity to file objections and of hearing, and strictly in accordance with the procedure under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Munna Chauhan petitioned the Allahabad High Court against U.P. Power Corporation Limited and three others, assailing a demand notice dated 17 November 2021 issued under Section 3 of the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1958, and a consequential order dated 26 March 2022 for recovery of Rs.1,48,005 and other charges. While the electricity department sought time to obtain instructions, the Court on 7 April 2023 restrained coercive action on that notice and on 18 April 2023 extended the interim protection.

HOLDING-UNITS

INTERPLAY · UP-2005::7.7.4

Fresh recovery order under the Supply Code

HOLDING

The impugned recovery under the 1958 Act having been withdrawn on instructions, the writ was disposed of with liberty to the licensee to pass a fresh order only after an opportunity to file objections and of hearing, and strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 3

FLAG The order does not number clause 7.7.4. It directs a fresh order strictly under the Electricity Supply Code, 2005, after withdrawal of a Section 3 notice under the 1958 Act.

PRINCIPLE TAGS

fresh-recovery-order-per-supply-code Once the Section 3 recovery was withdrawn, any fresh demand could be made only after objections and hearing and strictly under the procedure in the Electricity Supply Code, 2005. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER RS.1,48,005 AND OTHER CHARGES WERE LAWFULLY DUE FROM THE PETITIONER
The impugned recovery was withdrawn. The amount, if any, is left to a fresh order after hearing. ¶ 3